

Court No. - 34

Case :- WRIT - C No. - 62121 of 2005

Petitioner :- M/S Laxmi Oil Expeller Thru' Manager & Anr.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Others

Petitioner Counsel :- Mayank Agarwal, Seema Agrawal

Respondent Counsel :- W.H. Khan

Hon'ble Prakash Chandra Verma, J.

Hon'ble S.C. Agarwal, J.

Heard learned counsel for the parties.

By means of present writ petition, the petitioner has challenged the assessment order dated 10.2.2005 and the consequential order dated 3.5.2005 and vires of Section 8.2 (iv) of the Electricity Supply Code, 2005 framed under Indian Electricity Act 2003.

Learned counsel for the Company made a statement at Bar that the code has been amended and the amended provisions of the code is not under challenge. Therefore, challenge to the aforesaid provisions has been rendered infructuous.

So far as the assessment is concerned, the respondent authorities are directed to make a fresh assessment in accordance with the code which was amended by first amendment as the period of assessment relates to that amendment.

Order Date :- 26.10.2009

Gaurav